



REPUBLIC OF ZAMBIA

# **CODE OF ETHICS FOR THE PUBLIC SERVICE AND THE LOCAL GOVERNMENT**

**Office of the Secretary to the Cabinet - 2020**

**Revised 2020**



## FOREWORD

I have the pleasure of issuing this Code of Ethics for the Public Service and the Local Government Service. The Code delineates broad principles of basic values and behavioural standards that call for a high level of ethical conduct by employees to enhance public confidence.

It is my sincere hope that the Code will enable Public Service and Local Government Service employees execute their duties with efficiency and effectiveness, whilst exhibiting high moral values through exemplary conduct both on and off duty.

The Code shall be read with other existing Public Service and Local Government Service Management Policies, Regulations, Procedures, Guidelines and Administrative Circulars and Instructions issued by my Office, Service Commissions, Public Service Management Division and other appropriate Authorities.

A breach of the Code may lead to an application of existing disciplinary provisions.

I, therefore, urge all Public Service and Local Government Service employees to comply with and adhere to the provisions of the Code in order to renew their commitment towards enhancing public confidence in the Public Service and Local Government Service and contribute to the delivery of quality services to the people of Zambia.



**DR SIMON K. MITI**

**SECRETARY TO THE CABINET**

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## PART I

### PRELIMINARY

#### TITLE

1. This Code may be cited as the Code of Ethics for the Zambian Public Service and Local Government Service.

#### INTERPRETATION

2. In this Code, unless the context otherwise requires:

**“Appropriate Authorities”** means, Service Commissions, Public Service Management Division, Controlling Officers and Responsible Officers

**“Attachment”** means, assignment of an employee either to learn or work in another institution while retaining his/her post.

**“Employee”** means, an individual who has a contract of employment with a Public Service or Local Government Service Institution.

**“Employer”** means the President of the Republic of Zambia or the Service Commission as the case may be on behalf of the President of the Republic of Zambia or Board of a Public Service Institution.

**“Ethics”** means values, norms, beliefs, principles, rules or standards governing the conduct of an employee.

**“Local Government Service”** means, the Office of the Town Clerk, Council Secretary, members of staff of the Local Government Service Commission, the members of staff of the Local Authorities and other Local Government staff.

**“Public Service”** means, the Civil Service, the Teaching Service, the Zambia Police Service, the Zambia Correctional Service, and any other Service or Institution duly established under the Constitution of Zambia or an Act of Parliament.

**“Secondment”** means, the appointment of an officer from the Public Service or Local Government Service to a non-Public Service or Local Government Service Institution and vice versa, or from one Public Service or Local Government Service Institution to another but with different terms and conditions of service.

**“Work Environment”** means, any place where a Public Service or Local

Government Service employee is performing or discharging his/her official duties.

#### **APPLICATION**

3. This Code shall apply to Public Service and Local Government Service

employees:

- holding any post established by the Constitution of the Republic of Zambia and any other written law;
- holding any post established in the Public Service and the Local Government Service; and
- either on contract, attachment, secondment to other institutions, on leave of absence with or without pay, annual leave or on a course of training.

## **PART II**

### **CODE OF ETHICS**

#### **PREAMBLE**

4. The Government of the Republic of Zambia (GRZ), recognising the importance of the role of the Public Service and the Local Government Service in national development and in the delivery of quality services to the people of Zambia, and acknowledging that these ends can be achieved through diligence, perseverance and dedication of a professional Public Service and Local Government Service in formulating and implementing policies; has resolved to develop and implement the Code of Ethics for the Public Service and the Local Government Service.
5. The Code outlines broad principles of core values and behavioural standards that call for a high level of ethical conduct by Public Service and Local Government Service employees to enhance public confidence in the Public Service and the Local Government Service.
6. Observance of this Code serves to ensure that there will be no conflict of interest between an employee's private interest and the Government's primary interest in providing services to the Public in an efficient, effective, impartial manner and with integrity.
7. The Code shall be read with other existing Public Service and Local Government Service Management Policies, Regulations, Procedures, Guidelines and Administrative Circulars and Instructions issued by the Secretary to the Cabinet, Service Commissions, Public Service Management Division and other appropriate Authorities.
8. An employee who takes up an appointment in the Public Service or the Local Government Service accepts personal responsibility to exhibit positive work ethics and affirms his/her commitment to combating negative work habits.

## **PURPOSE OF THE CODE**

9. The purpose of the Code is to:-
- create a Public Service and Local Government Service that has enduring core values;
  - provide guidance on the standards of behaviour required of Public Service and Local Government Service employees; and
  - form the basis for the development of Codes that may be required for specific departments or institutions in the Public Service and the Local Government Service to suit particular operational requirements and circumstances.

## **PRINCIPLES AND CORE VALUES**

### **Principles**

10. Public Service and Local Government Service employees are expected to carry out their roles and responsibilities with dedication and commitment to the Public. They shall fulfill their lawful obligations to Government with professionalism while adhering to the principles of natural justice. Public Service and Local Government Service employees shall not bring the Public Service and the Local Government Service into disrepute.

### **Core Values**

11. Based on the principles, the enduring Core Values of the Public Service and the Local Government Service are:

#### **Integrity;**

Putting the obligations of the Public Service and the Local Government Service above one's personal interests, and conducting oneself in a manner that is beyond reproach;

#### **Honesty;**

Being truthful and declaring all private interests relating to one's public duties;



**Objectivity;**

Being open and basing one's advice and decisions on unbiased and rigorous analysis of the evidence;

**Impartiality;**

Acting solely according to the merits of the case and serving the public fairly and

diligently;

**Loyalty;**

Serving the Government of the day regardless of one's political, religious, social or cultural beliefs;

**Respect;**

Being considerate to the needs, beliefs, opinions and rights of others whether juniors, equals, peers, or superiors, and the public in general;

**Accountability;**

Being responsible to the Government and the public for decisions and actions taken, and submitting to whatever scrutiny is appropriate to one's office;

**Excellence;**

Being diligent, committed, efficient, and effective in the execution of one's duties;

**Confidentiality;**

Being trustworthy by not revealing or disclosing privileged information; and

**Selflessness**

Being noble and avoid seeking personal gain or benefits for one's family or friends through one's official position.

**Personal and Professional Conduct**

12. Public Service and Local Government Service employees, in the performance of their duties, shall demonstrate a high degree of professionalism and carry out their roles with dedication and commitment to the Public Service and the Local Government Service and its Core Values. In this respect, Public Service and Local Government Service employees are expected to observe the following standards of conduct guided by the Core Values at all times:

## **Integrity**

Public Service and Local Government Service employees shall:

- discharge their functions reasonably and according to law;
- comply with ethical standards governing their profession;
- report to relevant authorities any misconduct by any other officer of the commission which he/she knows of;
- not accept gifts, rewards or hospitality or receive benefits of any kind from any person or organisation which might compromise, or reasonably be seen to compromise one's personal judgment or integrity;
- not act in a way which may involve possible maladministration or is inconsistent with this Code;
- not misuse their official position to further one's private interests/gain or those of others;
- not consume alcoholic beverages while on duty;
- at all times, not dress inappropriately, indecently or with intent to seduce fellow employees or corrupt the morals of the public;
- At all times, not behave in a manner that is inappropriate, and disorderly so as to bring into disrepute the Public Service and the Local Government Service; and
- not engaging in any outside employment within normal working hours, for remuneration or otherwise, unless prior approval has been obtained from the Responsible Officer.

## **Honesty**

Public Service and Local Government Service employees shall:

- set out facts and relevant issues truthfully, and correct any errors as soon as possible;

- avoid situations in which their private interests conflict, or might reasonably be perceived to conflict, with the impartial fulfillment of their official duties and the public interests.
- Not to engage in activities which are in conflict with one's substantive office or other official duties, as the case maybe.
- not deceive or knowingly mislead anyone in the course of duty;
- not be influenced by improper pressures from others with the prospect of personal gain; and
- not exert undue or improper pressures on others with prospects of personal gain/interest.

### **Objectivity**

Public Service and Local Government Service employees shall:

- provide information and advice on the basis of evidence, and accurately present the options and facts;
- make decisions based on the merits of each case without attaching personal interest;
- take due account of expert and professional advice; and
- not to ignore inconvenient facts or relevant considerations when providing advice or making decisions.

### **Impartiality**

Public Service and Local Government Service employees shall:

- carry out their responsibilities in a way that is fair, just, and equitable and reflects the Public Service and the Local Government Service commitment to equality and diversity;
- serve the Government of the day, whatever its political persuasion, to the best of his/her ability in a way that maintains political impartiality, and is in line with the requirements as outlined in the Code, no matter what one's political beliefs are;

- act in a way which deserves and retains the confidence of the political leadership, while at the same time ensuring that one will be able to establish the same relationship with those whom they may be required to serve in some future Government;
- not act in a way that unjustifiably favours or discriminates against particular individuals or interests;
- not act in a way that is determined by political, cultural, religious, ethnic, social and other considerations, or use official resources for political purposes; and
- not allow one's personal political views to determine any advice he/she gives or action taken.

### **Loyalty**

Public Service and Local Government Service employees shall:

- pledge and fulfill allegiance to the Government of the day regardless of one's political, religious, ethnic, social and cultural beliefs;
- at all times have absolute and undivided loyalty to the Constitution of Zambia, other written laws and the lawfully constituted Government;
- comply with any lawful restrictions that have been laid down on socio-economic, cultural or religious activities;
- not frustrate the implementation of Government and other policies once decisions are taken by declining to take or abstain from taking action which flows from those decisions; and
- maintain relationship of mutual trust and confidence with superiors, subordinates, colleagues and the general public.

## **Respect**

Public Service and Local Government Service employees shall:

- refrain from using offensive, intimidating, derogatory words and/or gestures to those in authority, fellow Public Service and Local Government Service employees, and members of the general public; and
- be courteous and protect every person's dignity and rights as enshrined in the Constitution of Zambia.

## **Accountability**

Public Service and Local Government Service employees shall:

- ensure proper, effective and efficient use of public funds and other resources such as transport, stationery, telephone and internet services, or secretarial services provided for official duties or functions;
- carry out their responsibilities in a transparent and efficient manner;
- be accountable to the public and the Government in the discharge of their duties;
- Safeguard and account for all public assets and resources under one's responsibility and custody; and
- not absent himself/herself from official duties during office hours without leave or be late for duty without a valid reason.

## **Excellence**

Public Service and Local Government Service employees shall:

- deal with the affairs of the public efficiently, promptly and effectively without bias or maladministration;
- uphold the highest standard of performance;
- strive to excel in all one's endeavours by being diligent, competent, efficient and effective;

- perform all duties and exercise all powers that have been assigned to his/her office;
- project a good, right and positive image of the Public Service and the Local Government Service; and
- have due regard for hygiene, cleanliness and safety of the public and colleagues at the work place.

### **Confidentiality**

Public Service and Local Government Service employees shall:

- observe confidentiality even after he/she has left the Public Service and the Local Government Service; and
- not disclose without authority official information which has been communicated in confidence within Government or received in confidence from others. Nothing in the Code should be taken as overriding existing statutory or common law obligations to keep confidential, or to disclose certain information.

### **Selflessness**

Public Service and Local Government Service employees shall:

- carry out their responsibilities in a noble, unselfish and gallant manner; and
- apply themselves to the best of their abilities in the discharge of duties and responsibilities for the public good.

## **PART III**

### **ENFORCEMENT**

#### **Breach of the Code**

- 13.** A breach of the Code may lead to the application of appropriate disciplinary action in accordance with the provisions of the existing Disciplinary Codes, standing orders and other existing regulations.

#### **Custody, Interpretation and Implementation**

- 14.** The Secretary to the Cabinet shall be the custodian of the Code, while interpretation and coordination of its implementation shall be the responsibility of the appropriate Authorities.

## **PART IV**

### **OPERATIONALISATION OF THE CODE**

#### **Notification**

- 15.** At the institutional level, every Public Service and Local Government Service employee shall receive a copy of the Code issued by the Responsible Officer and/or Chief Executive Officer (CEO). Receipt of the Code must be documented by having the employee and the supervisor sign the Code of Ethics Acknowledgement Form at Appendix I in triplicate.

#### **Sensitisation**

- 16.** Public Service Management Division (PSMD), Line Ministries and Local Authorities in collaboration with other Government institutions shall conduct sensitisation programmes with regard to the Code.



**Appendix 'A' Code of Ethics Acknowledgement Form (CECAF1)**



**Republic of Zambia**

**CODE OF ETHICS ACKNOWLEDGEMENT FORM**

Original copy to Employee Master File

Second copy to Ministry/Department

Third copy to Employee

I, (Print Name) .....HAVE  
ACKNOWLEDGED RECEIPT, READ, UNDERSTOOD AND DO  
HEREBY UNDERTAKE TO ADHERE TO THE PROVISIONS OF THE  
CODE OF ETHICS FOR THE PUBLIC SERVICE AND /OR THE LOCAL  
GOVERNMENT SERVICE.

IN THE EVENT OF ANY VIOLATION OF THE PROVISIONS OF THE  
CODE ON MY PART, I UNDERTAKE TO AVAIL MYSELF TO THE DUE  
PROCESS OF APPLICABLE DISCIPLINARY CODE.

FURTHER, SHOULD I BECOME AWARE OF ANY VIOLATIONS OF THE  
CODE; I UNDERTAKE TO NOTIFY THE APPROPRIATE AUTHORITIES.

**SIGNED:**..... **DESIGNATION:**..... **DATE:** .....

**MINISTRY/INSTITUTION:**.....

I certify that the above named officer has been provided with a copy of  
***The Code of Ethics for the Public Service*** and/or the Local Government  
Service and a copy of this form (*CECAF1*) on the date indicated above.

**Signature:**..... **Name:**..... **Designation:**.....

**Responsible Officer:**..... **Date:**.....





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